# REASONABLE ACCOMMODATION POLICY

**CAPE COD VILLAGE CLUB, INC. (THE "ASSOCIATION" OR "CCVC")**
**ADOPTED BY THE ASSOCIATION ON DECEMBER 13, 2024**

It is the policy of CCVC to provide Reasonable Accommodations to Members affected by a disability[1], and to permit Members affected by a disability to make reasonable accommodations or modifications. We will advise all Members of our willingness to provide accommodations by noting on all relevant forms, that "reasonable accommodations for people with disabilities will be provided upon request."

## 1. DEFINITION OF DISABILITY

The Federal Fair Housing Act ("FHA") defines handicap as a physical or mental impairment or perceived physical or mental impairment that substantially limits one or more major life activities. (The preferred term is "disability"; however, a few fair housing laws use the terms "handicap" and "disability" interchangeably.)

The FHA defines a person with a disability as (1) a person with a physical or mental impairment that substantially limits one or more major life activities; (2) individuals who are regarded as having such an impairment; and (3) individuals with a record of such impairment.

## 2. REASONABLE ACCOMMODATIONS

CCVC is committed to granting Reasonable Accommodations when necessary to afford any Member affected by a disability the equal opportunity to use and enjoy their dwelling, housing services, amenities, and other common use spaces at the Association.

Reasonable Accommodations may include waiving or varying Association rules or policies to allow any Member affected by a disability to have an equal opportunity to use and enjoy their dwelling, housing services, amenities, and other common use spaces at the Association.

## 3. ASSISTANCE ANIMALS

Reasonable Accommodations may include requests to keep a service, assistance, support or therapy animal ("Assistance Animal"). An Assistance Animal is an animal that works, provides assistance, performs tasks for the benefit of a person with a disability, or provides emotional support that alleviates one or more identified symptoms or effects of a person's disability. While the most common Assistance Animals are dogs, other domesticated animals may qualify as Assistance Animals.

Notably, Assistance Animals are not considered to be pets under the Association's policies, and Assistance Animals will be governed by this policy and not by the Association's pet policies.

[1] Throughout this Policy, the term "Member(s) affected by a disability" is both intended to apply to any Member affected by a disability and any Member's guest affected by a disability.

The Association can only grant requests for Assistance Animals at CCVC from Members for themselves or their guests who are affected by a disability.

## 4. REASONABLE INQUIRY

At times, both the disability and the accommodation are obvious, such as a dog guiding an individual who is blind or has low vision, pulling a person's wheelchair, or providing assistance with stability to a person with a mobility disability. Upon completion of the Reasonable Accommodation Request, no further inquiry will be made and the Association will grant the Reasonable Accommodation.

In the case where the disability or the accommodation are not obvious, the Reasonable Accommodation Request process, outlined below, should be followed.

CCVC may require a written verification that the requesting Member is affected by a disability, and that the accommodation/modification is necessary to give them an equal opportunity to use and enjoy the dwelling, housing services, amenities, and other common use spaces. In support of a Reasonable Accommodation Request, the requesting Member affected by a disability should provide a signed letter from a healthcare provider on professional letterhead to CCVC answering the following questions:

- Is the requesting Member affected by a disability as defined by all applicable fair housing laws?
- In their professional opinion, does the requesting Member affected by a disability need the requested accommodation or modification in order to have the same opportunity as a non-disabled person to use and enjoy the dwelling and other common use spaces?

## 5. REASONABLE ACCOMMODATION REQUEST PROCESS

In the case where the disability or the accommodation are not obvious, CCVC requests that a written Reasonable Accommodation Form be submitted, which includes, among other documentation, a written statement from a health care professional indicating that the person has a disability; however, use of the Reasonable Accommodation Form is not required.

A Member affected by a disability should make a Reasonable Accommodation Request to the Reasonable Accommodation Committee ("RAC") in any reasonable manner. CCVC strongly prefers that all Reasonable Accommodation Requests be made in writing and sent via email to the RAC at ccvcesacoordinator@gmail.com. Additionally, if the disability creates a limitation which prevents the Member affected by a disability from submitting a request in writing, then the RAC will assist them in doing so upon request.

For convenience, CCVC has created a Form to request a Reasonable Accommodation and has included it in the CCVC Governance Packet. Copies of the Form are also available upon request.

In support of a Member's Reasonable Accommodation Request, they should also be prepared to submit a written statement from a health care professional indicating that the person

has a disability (*i.e.*, a physical or mental impairment that substantially limits one or more major life activities) **and** that the Reasonable Accommodation is necessary to use and enjoy the dwelling.

The written statement can be general to the underlying condition but must include the health care professional's personal knowledge that is specific to the individual with a disability and the accommodation requested by the individual, and whether the condition is temporary or permanent (where possible). The statement must come from a licensed health care professional – *e.g.*, a physician, optometrist, psychiatrist, psychologist, therapist, physician's assistant, nurse practitioner, or nurse – and must include professional credentials.

If the requested Reasonable Accommodation is for an Assistance Animal, CCVC requires the following additional information and/or documentation:

- CCVC will require written proof of your Assistance Animal's current rabies vaccination, and any other vaccinations required by New York State and Warren County, and updated proof of vaccination as necessary, which should be sent to the RAC via email;

- CCVC will require a current photograph and description of the Assistance Animal, including his/her name, approximate age, weight, and breed, which should be sent to the RAC via email; and

- CCVC will provide you with an identifying dog tag to indicate that this is a permissible Assistance Animal. CCVC encourages you to affix the CCVC-provided dog tag to your Assistance Animal's collar and to ensure that it is visible whenever your Assistance Animal is on CCVC limited common areas or common areas.

## 6. TRAINING NOT REQUIRED

The Association cannot deny a request to keep an Assistance Animal solely because the animal has not received formal training. Some Assistance Animals, known as "service animals," are trained by professionals, their owners, or someone else to work or perform tasks for individuals with disabilities. Other Assistance Animals, however, do not require any special training. The relevant question is whether the animal performs the assistance or provides the benefit needed by the person with a disability to afford that person an equal opportunity to enjoy the use of their dwelling at CCVC.

## 7. INSUFFICIENT PROOF

Some websites sell certificates, registrations, and licensing documents for assistance animals to anyone who answers certain questions or participates in a short interview and pays a fee. This is distinct from telemedicine and teletherapy where legitimate, licensed health care professionals deliver services remotely, including over the internet. Documentation from such

websites or the internet is not, by itself, sufficient to reliably establish that an individual has a non-observable disability or disability-related need for an assistance animal.[2]

## 8. ASSISTANCE

If the Member requires assistance in completing the form, the Association's RAC Chair, or his or her designee, will provide assistance or will fill out the form based on an oral request. The Association is using the form to record Reasonable Accommodation Request(s) so that it obtains only the information necessary to make a determination and does not obtain confidential information that is not necessary to make a Reasonable Accommodation decision.

## 9. APPROVAL PROCESS

The RAC will acknowledge this request to the applicant within ten (10) days. The RAC Chair will conduct the initial review of the application for adherence to this policy. Once it is determined all the required documentation has been provided, the RAC Chair shares the application with one (1) other RAC member who is also a Member of the Association, on a rotating basis (if possible). To ensure confidentiality of the applicant, only one (1) additional Association Member reviews the details of the application. However, in the event the two (2) reviewing RAC members have different views as to whether to accept or reject the application, a third RAC member who is also an Association Member is engaged to reach a simple majority.

Once an initial determination is reached, the RAC will inform the CCVC Board of its recommendation and the CCVC Board will make the final decision within fourteen (14) days of the initial acknowledgment by the RAC. Board approval shall not be unreasonably withheld.

The Association recognizes that a person with a disability is generally in the best position to know whether or not a particular accommodation will be effective in meeting his or her needs. Prior to denying any request, the Board will direct the RAC to attempt to engage in an interactive process with the Member making the request, in which the parties will discuss possible alternative accommodations that might effectively meet the disability-related needs.

## 10. CONFIDENTIALITY

All information obtained in analyzing a Reasonable Accommodation Request will be kept confidential and will not be shared unless necessary to make or assess a decision to grant or deny a Reasonable Accommodation Request or unless disclosure is required by law.

## 11. COMMON AREAS VS. PRIVATE AREAS

Private Areas are defined by the respective Members' property lines. Assistance Animals are not permitted in the Private Areas of other Members, except when permission is granted by the respective Member to the Assistance Animal's Owner.

---

[2] *See* U.S. Department of Housing and Urban Development Notice FHEO-2020-1, *Assessing a Person's Request to Have an Animal as a Reasonable Accommodation Under the Fair Housing Act* (Jan. 28, 2020) (accessible at https://www.hud.gov/sites/dfiles/PA/documents/HUDAsstAnimalNC1-28-2020.pdf).

All other CCVC-owned lands are considered Common Areas. Assistance Animals are permitted in Common Areas.

## 12. SUPERVISION

The Member affected by a disability is solely responsible for ensuring that the Assistance Animal is cared for and supervised. The Member affected by a disability shall be Responsible for retaining full control of the Assistance Animal. The Member affected by a disability is responsible for ensuring that the Assistance Animal is leashed (or attached to a secure line) whenever located outside, unless the Member uses an electronic leash or electronic fence in their unfenced yard and ensuring that the Assistance Animal is not a danger to other people. Further, the Member affected by a disability is responsible for ensuring that their Assistance Animal does not cause damage to any Common Areas, Limited Common Areas, or Private Area of other Members.

The Member affected by a disability must be present with and/or maintain direct control of the Assistance Animal at all times when outside of their own Private Area.

## 13. RESPONSIBILITIES

This Policy is intended to bring Members with and without Reasonable Accommodations to an equal position relating to their enjoyment of their dwelling, housing services, amenities, and other common use spaces at the Association. The responsibility of the Member affected by a disability includes ensuring that:

- the Assistance Animal is supervised and on a leash in Common Areas and Limited Common Areas;
- the Assistance Animal is leashed whenever located outside unless you use an electronic leash or electronic fence in your unfenced yard;
- the Member retains full control of the Assistance Animal when outside of their own Private Area;
- the Assistance Animal is not a danger to others;
- the Assistance Animal does not cause damage to any Common Areas, Limited Common Areas, or Private Property of other Members;
- the Member handles the cleanup of the Assistance Animal's waste; and
- the Assistance Animal does not go on the Private Property of other Members, except when permission is granted by the respective Member.

## 14. LIABILITY

A Member can be held liable for any personal injuries and/or property damage actually caused by an Assistance Animal registered for such Member's dwelling. CCVC assumes no joint

or several liability for any such damage caused by a Member's CCVC-approved Assistance Animal.

### 15. Removal for Behavior

If an Assistance Animal is unreasonably dangerous, CCVC reserves the right to require immediate removal of the Assistance Animal from all CCVC property, pursuant to the process outlined by the Fair Housing laws. The removal of the specific Assistance Animal may be permanent.

### 16. Appeal Process

If a Member affected by a disability believes that their Reasonable Accommodation Request has been denied unlawfully or that the response is unreasonably delayed, he or she may file an appeal in writing with the CCVC Board within fourteen (14) days.

The appeal should be submitted in writing to the CCVC Board at CCVC12836@gmail.com, and should include the original request, required documents, denial letter or correspondence, and a brief statement of the issue as to why the Member believes the Association's initial determination was unreasonably delayed, arbitrary, capricious, discriminatory, or otherwise incorrect.

CCVC will acknowledge the appeal and provide an initial response time for the appeal. Please note that response times may be extended as needed for legal counsel or other reasons.

### 17. Right to File Complaint

If a Member is not satisfied with the outcome of the Reasonable Accommodation Request, approval or appeal process, he or she may file a complaint with:

U.S. Department of Housing and Urban Development (HUD)
Office of Fair Housing and Equal Opportunity (FHEO)
451 Seventh Street SW
Washington, DC 20410
Toll-Free Phone: (800) 669-9777
https://www5.hud.gov/Hud903/main/pagHUD903Form.jsp

**Retaliation is a violation of the Fair Housing Act.**

Section 818 of the Act makes it unlawful to retaliate against any person because he or she has filed a housing discrimination complaint; is associated with a complainant; has counseled or otherwise assisted any person to file such a complaint; has requested reasonable accommodations; or has provided information to HUD during a complaint investigation. Section 818 also protects complainants against retaliatory acts that occur after a complainant has withdrawn, settled, or conciliated a housing discrimination complaint. Any person who believes that he or she has been a victim of retaliation for any of the reasons listed above may file a housing discrimination

complaint with HUD within one (1) year of the date on which the most recent alleged retaliatory act(s) occurred or ended.

### 18. Updated Documentation

As necessary, the RAC may require updated documentation relating to the Member's Reasonable Accommodation Request. Specifically, on an annual basis, the RAC requires updated documentation for all Assistance Animals, including:

- Updated written proof of the Assistance Animal's current rabies vaccination, and any other vaccinations required by New York State and Warren County.

### 19. Summary

The Association will abide by all applicable Federal, State or Local laws. This Policy will be reviewed and/or modified by the Board of Directors as the relevant and applicable Federal, state, or local laws change.

### 20. Questions or Concerns

If a Member or their guest(s) has questions or concerns about the Association reasonably accommodating a request based on a disability, please email these questions and concerns to the RAC at ccvcesacoordinator@gmail.com.